सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
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MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 29.10.2020

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) for Air Cargo Complex, Sahar, was held on 29.10.2020 at 03.00 pm and was Co-chaired by Shri Vijay Singh Chauhan, Commissioner of Customs (General), Shri Anantha Krishnan, Commissioner of Customs (Export) and Shri Vinayak Azaad, Commissioner of Customs (Import). In view of the government directives advising "social distancing" and restrictions on avoidable movements on account of the threat of Covid-19, the meeting was conducted via Web Conference.

The following officers and representatives from the stakeholder organizations participated in the meeting:

Name & designation		**Organization**
Shri M. K. Sarangi, Addl. Commissioner (Import)		Customs, ACC, Andheri
Shri Vishal Sanap, Addl. Commissioner (Import)		Customs, ACC, Andheri
Shri Prabhakar Kumar, Jt. Commissioner (Export)		Customs, ACC, Andheri
Shri R.K. Suvarna, AC (Import)		Customs, ACC, Andheri
Shri Bipin Jadhav, AC (Import)		Customs, ACC, Andheri
Shri Ashwini Bandekar, AC (Import)		Customs, ACC, Andheri
Shri Roshan Lal, AC (Import)		Customs, ACC, Andheri
Shri S C Das, AC (General)		Customs, ACC, Andheri
Name of attendees from stakeholder organizations		**Organization**
Shri Dushyant Mulani, Shri Sanjeev Harale, Shri Kaushal Thakkar, Shri Ketan Desai, Shri K.Shetty, Shri Ganpat Korde, Shri Shanakar Shinde		BCBA
Shri Bala Ayer		ACAAI
Shri Manoj Singh		MIAL
Shri Raj Dhule, Shri Jignesh		AIATSL
Shri Mark Fernandes		MSF Bombay
Shri Rishikesh		Siemens Healthcare
Shri Vasudevan, Shri Gaurav Dogar		DHL Express
Shri Jayesh parab		MACCIA
Shri Venkatraman		DHL Logistics
Shri Newton Fernandes		All Nippon Airlines
Shri Kiran Panbude		Collector of Stamps
Other attendees		
Shri Paresh Shah	Shri Nandan Kanchan	Shri Anwar Khan

Shri Mangesh Mali	Shri Sorab P Engineer	Smt. Chaitaly Mehta
Shri Rajiv Desai	Shri Sanjeev Harale	Shri Dayanand Kotian
Smt. Vaishali Kulkarni	Shri Abdul Gafume	Shri Paresh Sangani
Shri Prathmesh Sirambedkar	Shri Lynn Bothello	Shri Ashish Pednekar

At the outset, Commissioner of Customs (G) welcomed the members of Trade, Customs Broker Associations, Airlines Representatives, Custodian Representatives, and other stake holders present for the web-meeting.

Following agenda points were taken up:

A. OPEN POINTS FROM LAST PTFC MEETING HELD ON 25.09.2020

1. Request to provide more KIOSK - TOUCH SCREENS terminal:

(General)

Presently only one touch screen is available at ACC. We propose to install few touch screens terminals at ACC and request to repair those touch screens, which are out of order.

BCBA submitted that two KIOSK - TOUCH SCREENS terminals are to be installed one at light shed and other at heavy shed.

Commissioner (G) informed that he had personally reviewed the functioning of the 03 KIOSK - TOUCH SCREENS installed at ACC: the one at the 1st floor of office premises is functional, 2nd is at Batch Office, Export Shed which is also functional, and 3rd one is installed at appraising hall, which is currently not functional. Efforts are being made to get it functional by the first week of November. He also desired that action be initiated by the EDI Section to procure additional KIOSK - TOUCH SCREENS to be installed at gate of the ACC premises.

(Point Closed)

2. Short collection of charges by MIAL on import consignments

(MIAL)

We refer to the short collection charges which are collected by MIAL. Primarily we have thoroughly checked the matter and discussed with MIAL Authorities. It has been observed that it is the Console agent who is giving incorrect chargeable weight to MIAL. Importer/ CB have no role to play in such short collection due to improper details given by Console Agents.

Hence, we suggest the following:

(a) All Console agents are registered with MIAL and have their PD account with MIAL. Hence any short collection arising out of wrong information provided by the Console agents, the concerned Console Agents account should be debited for short collection.

(b) MIAL is requested to setup a mechanism wherein the chargeable weight should be directly uploaded in their system by the concerned Console Agents while releasing the online DO, thus avoiding the requirement of hard copy of HAWB.

(c) Any instance of short collection notice should be flagged out with proper email communication by MIAL accounts team within 30 days of

the incidence clearance. Necessary steps should be taken to ensure that accurate online information is exchanged between Airline, Console Agent and MIAL to avoid insistence on manual hard copy of MAWB/ HAWB. This paperless initiative will help to maintain accurate declaration.

MIAL representative stated that they are in the process of digitalizing all the data within two weeks. This paperless initiative will help to maintain accurate declaration.

This will also avoid the requirement of hard copy of HAWB. MIAL representative also stated that a circular is to be issued regarding debiting of PD account of console agent for any short collection arising out of wrong information provided by the console agent.

Manager, MIAL stated that SOP in this regard will be issued at the earliest and will come out with Custodian notice having specific guidelines. The point is being closed for time being.

(Point Closed)

3. Inward Date

Nowadays customs have given us the facility of filing our bills of entry in advance. Even the assessment is done and we can pay the duty and be ready to clear the shipment as soon as the segregation is done. But it is important that the airline registers the inward date within the stipulated time, so that we can go for goods registration and complete our formalities for clearance of the shipment. Inward date must be filed within one hour of the flight landing.

Commissioner (G) stated that a Public Notice regarding filing of IGM on time will be issued by the first week of November.

(Point closed)

4. LUFTHANSA CARGO

Submission of Noter set by email, to be digitally. At least by those Airlines who are able to submit the scanned copies. We already submit a similar set to AIU on email and have no issue since long time, its quick immediately after the flight check and no paper, today we are submitting almost 1000 of copies and would save time and storage issue, instead it would be saved digitally and refer any time. Which is also the need of hour to avoid so many airlines staff visiting your office for submission of same.

Commissioner (G) stated that a Public Notice regard will be issued by the first week of November.

(Point closed)

5. Issues with Faceless assessment

(Import)

I. Delay in assessment of B/E's at various locations across the country.

II. Examination order and instructions are given asking for bank attested invoice, 100% examination, asking for compliance of BIS, WPC etc, even where not required.

III. Delay in clearance of consignments EPCG, Advance Authorization and provisional assessment cases due to 100% BG being levied, even in cases where not applicable. To remove the 100% BG there is confusion between PAG and FAG, as regards who will remove the 100% BG.

IV. Examination orders are not given properly for second hand consignments, re-import consignments, temporary imports etc. For rectification of the examination order there is confusion whether to approach PAG or FAG.at present considerable clearances are delayed due to this,

V. Several FAG locations do not operate on Saturdays unlike at Mumbai and therefore B/E's submitted on Friday would not get assessed and cleared on Saturday.

VI. Difficulty in carrying out provisional assessments in FAG due to co-ordination and execution of Bond and BG (wherever required) SVB, FTA, other duty exemption schemes including concessional rate for manufacturing & project imports, etc.

VII. Some assessments are being made with examination instructions entered in the special comments box which CB and Trade is not aware. Hence during examination after payment of duty there are surprise checks which the trade needs to face.

VIII. SOP for carrying out amendment to the import BE's which are assessed by FAG needs to be provided ,since there are considerable amendments pertaining to short shipments, part shipment change of AWB etc, needs to be carried out for timely clearances.

IX. Further they have suggest if assessments are delayed for more than 24 hours, a nodal officer be kindly appointed to expedite the clearance.

Commissioner (Import) stated that all these points including procedural and system issues are being addressed and tried to resolve the issue at the earliest.

(Point Open)

6. **Delay in receipt of first copy of Bill of Entry**

(Import)

Due to EDI system delay there is considerable delay in receiving the first copy of the printout, after the assessment is complete. They have requested to resolve the same.

Addl. Commissioner of Customs (Import) has informed that matter has been taken up with DG (System) and issued has been resolved up to a certain extent.

(Point Closed)

Fresh Agenda Points

POINTS RAISED BY BCBA:

1. **Faceless Points** :-

(Import)

a) There is considerable delay of min. 5 to 10 days for clearance.
b) There is an urgent need to depute Nodal Officers at each PAG / FAG locations with email ID and Cell Number to address difficulties on assessment. We request the information to be uploaded on CBIC Website.
c) We request that any cases of re-assessment should be carried out by PAG at the level of Dy. Commissioner instead of present situation where the files are sent up to Commissioner level for re-assessment.
d) For timely clearance and sake of transparency, clearance instructions need to be given on the body of the Bill of Entry and comments in special comments box should be avoided.
e) Ref. Para No 2.5 of CBIC Circular No 45/2020 which stipulates that Custom Brokers need to approach FAG for carrying out re-assessment need to be re-looked into. We suggest that since the Importers / Custom Broker do not have accessibility to FAG, the proper officer in PAG will need to be approached by trade for carrying out re-assessment.

Commissioner (Import) stated that all these points including procedural and system issues are being addressed and tried to resolve the issue at the earliest.

(Point Open)

2. With E-sanchit being actively used for uploading export documents, we request that service centre should stop collecting their fees.

(Export)

BCBA informed that they are in the discussion with Commissioner (Export) regarding the issue and desired to drop this point.

(Point Closed)

3. The Trade has been requesting for status of DGFT licence debits for clearance of import shipments and hence we request for facility of ledger prints be made available.
Addl. Commissioner (Import) stated that roles in this regard will be allocated to TSK officers and issue will be get resolved.

(Point Closed)

4. Few airlines still not working 24 x 7 for issuance of delivery of import consignments, like TURKISH AIRWAYS, DHL, FEDEX, UPS, SQ, CATHAY, after payment of their d/o charges, there is a tremendous delay in releasing online d/o. There are no contact details on their cargo arrival notice nor e-mail ID to communicate.

Commissioner (G) has asked BCBA to provide the specific data in this regard and assured to resolve the issue after receiving specific data.

(Point Open)

5. CB's are facing hardship in clearance of courier shipment arriving through DHL. Delivery is not being permitted by Custodian, MIAL as they require presence of DHL representative.

BCBA informed that issue has been resolved.

(Point Closed)

6. All touch screen KIOSK are down and they require urgent repairs.

(General)

Commissioner (G) informed that there are 03 KIOSK - TOUCH SCREENS installed at ACC, one is at 1st floor of office premises which is functional, 2nd is at Batch Office, Export Shed which is functional and 3rd one is installed at appraising hall which is currently not functional but will be get functional by the first week of November. He also desired to procure additional KIOSK - TOUCH SCREENS to be installed at gate of the premises.

(Point Closed)

7. MIAL is accepting packages in import shed from the carriers knowingly when the HAWB Label is missing from the package, and the same consignment is held up at the time of taking delivery at the gate. Earlier, MIAL was keeping the remark in their systems as " HOLD " which should continue to avoid cancellation of the delivery of the import cargo.

MIAL stated that specific issues in this regard may be provided and will be get resolved.

(Point Open)

POINTS RAISED BY ACAAI:

(Export)

1) The trade has referred to Board Circular Nr. 41 / 2020 dated 07.09.2020 on Auto Let Export Order under Express Cargo Clearance System (ECCS),

In this regard they have submitted that, even though RMS was introduced some years ago, till date, not a single shipping bill has received RMS facilitation. All SBs have gone for assessment and or examination before LEO is given. There has never been an instance when a shipping bill was given LEO without examination.

They have requested to consider for giving the facility to the exporters operating at the ACC to give auto LEO for RMS facilitated shipping bills after registration.

Commissioner (Export) stated that he has already taken up the issue with Chief Commissioner's office to further taken up with DG (System) and hope to resolve it very soon.

(Point closed)

POINTS RAISED BY LUFTHANSA CARGO

(Export)

They have requested to include their point of EGM show cause / personal hearing for EGM error is being penalized even after rectification has been done.

they have been doing all the amendment as per process immediately after receipt of EGM submission acknowledge if there is any error.

They have been sent letter from EGM coordination office for all the old pending shipping bills with EGM error in customs system, which are already cleared from their end, but still reflecting in customs system.

Further after receipt of letter, they again did the same formalities but even then it was reported in show cause and personal hearing.
And this time they again did, it was done by the same ACC adjudicating authority and confirmed its cleared now, but after all this they are being penalized on the basis of number of shipping bill, which is not their fault.
Most of this error is caused due to changes on shipping bill in customs system after acceptance of Cargo and before EGM submission. Which is received as error on EGM acknowledge and amendment is done as per process. The error is due to some print issue in system, and P error is package mismatch, which is done on the basis of AWB and actual receipt.

They have requested to please consider those cases with no penalty as we have been doing all the requirement as per customs guidelines.

Commissioner (Export) stated after issuance of public notice for rectification & Show Cause Notice, still Airlines have not corrected it and only after issuance of Adjudication Order, they are correcting it. He also stated that it is the responsibility of the Airlines to correctly file the IGM and desired to meet on Monday (02.11.2020) in this regard.

(Point Closed)

The meeting ended with thanks to the Chair.
This is issued with the approval of Commissioner of Customs (General /Import/ Export), Mumbai Customs Zone-III.

24/11/2020

(M.K. Sarangi)
Addl. Commissioner of Customs (Import)
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Asst, Drug Controller, ACC, Sahar.
8. Office copy. discussion